

The Citizenship

1. Indian citizenship cannot be obtained by –

- (a) Birth
- (b) Naturalization
- (c) Absorbing any part of land
- (d) Depositing money in Indian Banks

41st B.P.S.C. (Pre) 1996

Ans. (d)

According to Indian Citizenship Act 1955 (as amended), the citizenship may be acquired on the basis of- (1) By Birth (2) Descent (3) Registration (4) Naturalization (5) Incorporation of Territory. Depositing Money in Indian banks is a commercial action, not a basis to acquire citizenship as per the Constitution.

2. When was the Citizenship (Amendment) Act passed?

- (a) 11th December, 2018 (b) 11th December, 2019
- (c) 11th October, 2019 (d) 11th October, 2020
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (b)

On 11th December 2019, Rajya Sabha passed the contentious Citizenship (Amendment) Bill 2019, with 125 votes in favor and 99 against. The Bill was passed by the Lok Sabha on 9th December 2019. The Act amends the Citizenship Act, 1955 and for the first time, will grant citizenship based on religion to non-muslim communities from Afghanistan, Bangladesh and Pakistan who entered India on or before December 31, 2014.

Fundamental Rights

1. The phrase 'equality before law' used in Article 14 of the Indian Constitution has been borrowed from the Constitution of

- (a) France (b) Britain
- (c) USA (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (b)

Article 14 of the Indian Constitution says—The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth. This provision confers rights on all persons whether citizens or foreigners. It is notable that the concept

of 'equality before law' is of British origin while the concept of 'equal protection of Laws' has been borrowed from the Constitution of United States of America.

2. From which country, the Indian Constitution has taken reference for the idea of the Fundamental Rights?

- (a) Ireland (b) United States of America
- (c) United Kingdom (d) Canada

69th B.P.S.C. (Pre) 2023

Ans. (b)

The framers of the Constitution took inspiration for a number of its aspects from other international constitutions. The United States Constitution serves as the paradigm for India's Fundamental Rights. The essential rights that everyone is entitled to in order to live with honor and integrity are known as fundamental rights. The Indian Constitution's Third Part contains these.

The judiciary has the upper hand in interpreting the Constitution thanks to this provision. Thus, if an order issued by the legislature or the executive branch of government conflicts with the nation's Constitution, the court has the authority to overturn it.

3. Which of the following is given the power to enforce the Fundamental Rights by the Constitution?

- (a) All Courts in India
- (b) The Parliament
- (c) The President
- (d) The Supreme Court and High Courts

47th B.P.S.C. (Pre) 2005

Ans. (d)

Article 13 of the Constitution grants power of Judicial Review to the Supreme Court, and High Courts in the case of violation of the Fundamental Rights. The Supreme Court (Art.32) and High Court (Art.226) in exercising their power may declare any law or enactment passed by the Legislature, void or unconstitutional, on the ground of contravention to the Fundamental Rights.

4. What is meant by 'Rule of Law'?

- (a) One act for all and one judiciary for all
- (b) One act for all and one State for all
- (c) One State for all and one judiciary for all
- (d) All acts for one and one judiciary for all
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (a)

The 'Rule of Law' implies that the creation of laws, their enforcement and the relationship among legal rulers are themselves legally regulated, so that no one including the most highly placed official is above the law. The legal constraint on rulers means that the government is subject to existing laws as much as its citizens are. Thus, a closely related notion is the idea of equality before the law, which holds that no legal person shall enjoy privileges that are not extended to all and that no person shall be immune from legal sanctions.

5. Under which Article of the Constitution of India, Fundamental Rights have been provided to citizens?

- (a) Articles 112 to 115 (b) Articles 12 to 35
(c) Articles 222 to 235 (d) None of these

44th B.P.S.C. (Pre) 2000

Ans. (b)

Part III (Art.12-35) of the Constitution enumerates 6 Fundamental Rights which are provided to citizens.

6. The description of fundamental rights for the Indian citizens is in –

- (a) Articles 12 to 35 of the Constitution
(b) Articles 13 to 36 of the Constitution
(c) Articles 15 to 39 of the Constitution
(d) Articles 16 to 40 of the Constitution

39th B.P.S.C. (Pre) 1994

Ans. (a)

See the explanation of the above question.

7. Supreme Court's judgment of Indra Sawhney Vs Union of India Case is related to which issue?

- (a) Regarding the issue of OBC reservation in Government employment
(b) Basic Structure Theory
(c) Approve the reservation on promotion of SC
(d) Extended reservation for ST
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

In Indra Sawhney etc. vs Union of India and Others, 1992 The Supreme Court held that the reservation under Article 15 (4) and 16 (4) should not exceed 50 percent and the States and the Union have by and large accepted this as correct and it should be held as Constitutional Prohibition and any reservation beyond 50 percent would be liable to struck down.

8. The validity of the order of the Government of India of 13th August, 1990, for the reservation to socially and educationally backward classes, was decided in which of the following years?

- (a) 1991
(b) 1992
(c) 1993
(d) More than one of the above
(e) None of the above

B.P.S.C. PRT 2023 Shift I

Ans. (b)

The government of India issued an order called Memorandum on August 13, 1990. The order states, in addition to SC and ST the new third category that is known as the socially and Educationally Backward classes will also receive the 27% job reservation advantage. It was implemented in year 1992.

9. Which Article of the Constitution gives precedence to Constitutional provisions over the laws made by the Union Parliament/State Legislatures?

- (a) 13 (b) 32
(c) 245 (d) 326

45th B.P.S.C. (Pre) 2001

Ans. (a)

Article 13 of Indian Constitution makes provision that pre-constitutional laws and post-constitutional laws if inconsistent with the provisions of Fundamental Rights enumerated in part III, shall be void to the extent of such inconsistency. Article 245 is related to the extent of laws made by the Parliament and by the Legislatures of the States. Article 326 is related to the election of the Lok Sabha and Legislative Assemblies of the States to be on the basis of adult suffrage, and Article 32 is for the Constitutional remedies. Thus in the given option, (a) seems to be the correct answer.

10. Which Article of the Constitution of India is related with Freedom of the Press.

- (a) Article 19 (b) Article 20
(c) Article 21 (d) Article 22

47th B.P.S.C. (Pre) 2005

Ans. (a)

In the Indian Constitution provision related to freedom of the Press is not given directly but Supreme Court held that right to freedom of speech and expression (Article 19) include right to freedom of the Press.

11. Which one of the following constitutional remedies is also known as 'postmortem'?

- (a) Prohibition (b) Mandamus
- (c) Certiorari (d) Quo warranto
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (e)

In the certiorari writ, the Supreme Court and the High Court re-examine the decision given by the Subordinate Courts. Through the Quo warranto writ the court enquires into the Legality of a claim of a person to a public office. This writ prevents the illegal assumption of a public office by an individual. Therefore, both the writ have a sense of postmortem. Thus the appropriate answer for this question should be (e), while Bihar Public Service Commission has mentioned option (d) as the correct answer.

12. Which of the following can a court issue for enforcement of the Fundamental Rights?

- (a) Decree (b) Writ
- (c) Ordinance (d) More than one of the above
- (e) None of the above

B.P.S.C. PRT 2023 Shift II

Ans. (b)

The Fundamental Rights are given in the part III of the Constitution. These are enforceable in a court of law if a violation occurs. Significantly, the Indian Constitution empowers Supreme Court and High Court under Articles 32 and Article 226 respectively to issue writ to safeguard of Fundamental Rights of the Citizen.

13. Which one of the following is not a fundamental right?

- (a) Right to Constitutional Remedy
- (b) Right to Property
- (c) Right to Peaceful Assembly
- (d) Right to free movement all over the Country

42nd B.P.S.C. (Pre) 1997

Ans. (b)

At present, the right to property is a constitutional legal right viz. "No person shall be deprived of his property save by authority of law", under Article 300A, inserted by the 44th Constitutional, Amendment Act, 1978.

14. Choose the fundamental rights available to Indian Citizen but not to aliens:

- I. Freedom of Speech and Expression
- II. Equality Before the Law
- III. Right of Minorities
- IV. Protection of Life and Liberty

- (a) I and III (b) I and IV
- (c) II and IV (d) II and III
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

Right to freedom of speech and expression under Article 19 and cultural and educational rights of minorities under Article 29 are available to Indian citizens only. They are not available to foreign nationals.

15. The Supreme Court has held that hoisting the National Flag atop the private buildings is a fundamental right of every citizen under:

- (a) Article 14 of the Constitution
- (b) Article 19(1)(a) of the Constitution
- (c) Article 21 of the Constitution
- (d) Article 25 of the Constitution
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

According to the Supreme Court of India, hoisting the national Flag atop the private buildings is a fundamental right of every citizen under Article 19 (1)(a) of the constitution. Article 14 guarantees equality before the law or the equal protection of the laws. Article 21 deals with right to life and personal liberty. Article 25 provides for freedom of conscience and free profession, practice and propagation of religion.

16. Which of the following rights conferred by the Constitution of India is also available to non-citizens?

- (a) Right to Constitutional Remedies
- (b) Freedom of Speech
- (c) Freedom to Move and Settle in any Part of the Country
- (d) Freedom to Acquire Property

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

The right to constitutional remedies is available to both citizens of India and non-citizens (foreigners) but the right to freedom of speech, freely travel throughout the country and to acquire property is given only to the citizens of India.

17. When was the Right to Education added through the amendment in the Constitution of India?

- (a) 1st April, 2010 (b) 1st August, 2010
- (c) 1st October, 2010 (d) 1st December, 2010

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)